

but only where it finds “the probable recovery for wrongful attachment exceeds the amount of the undertaking.” Here, defendants do not dispute that there is a debt owed (or that will be owed) in the amount shown in the documents. It is thus not clear to the Court what the monetary consequence of wrongful attachment would be. Accordingly, the amount of the undertaking shall be \$10,000 per defendant.

Conclusion

With respect to defendant Dhoot, subject to (1) the plaintiff posting an undertaking in the amount of \$10,000 and striking “personal property,” “motor vehicles,” and “safe deposit boxes” from Attachment 9, the application is granted.

With respect to defendant HD 2670 Walnut Blvd Member, LLC, subject to plaintiff posting an undertaking in the amount of \$10,000, the application is granted.

Any required judicial council forms shall be revised and re-submitted consistent with this ruling.

14. 9:00 AM CASE NUMBER: MS25-0288
CASE NAME: CLAYTON GARDENS VS. NATHAN PARSONS
***HEARING ON MOTION IN RE:**
FILED BY: PARSONS, NATHAN
TENTATIVE RULING:

Defendant Nathan Parsons moves to vacate judgment entered after a court trial on February 23, 2026. The case has a rather lengthy—for an unlawful detainer proceeding—procedural history involving multiple trials and a federal bankruptcy action. On the day set for jury trial, Defendant failed to appear. He argues that he was in the hospital—for a limited stay of less than two hours—but he provides no proof of that visit, nor does he establish any diligence in notifying the Court or counsel of his condition before, during, or even immediately after he left the hospital. Instead, he waited two and a half weeks to file a motion. Defendant has failed to establish good cause for relief, under Code of Civil Procedure section 473(b). The Motion is **denied**.

15. 9:00 AM CASE NUMBER: MSC20-01999
CASE NAME: SANCHEZ VS ATHERSTONE FOODS, INC.
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY COURTROOM CLERK**
FILED BY:
TENTATIVE RULING:

Based on the declaration of the Settlement Administrator, the Court concludes that the disbursement of PAGA and Class Action Settlement Funds is complete and directs the administrator to release the remaining attorneys’ fees.

16. 9:00 AM CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEZEY

***HEARING ON MOTION FOR DISCOVERY MTC RFA ANSWERS, PRODUCTION OF DOCUMENTS FOR INSPECTION, MONETARY AND EVIDENTIARY/ISSUE SANCTION ON DEFT MELISSA SWEZEY
FILED BY:**

TENTATIVE RULING:

Plaintiff Antonio Virelas has filed this Motion to Compel responses to Requests for Admission and Requests for Production of Documents. Defendant Melissa Swezey has filed no timely opposition. On April 21, 2026, she filed a "RESPONSE TO PLAINTIFF'S SUPPLEMENTAL STATEMENT OF FACTS AND REQUEST FOR ORDER TO DEEM ALL REQUESTED ADMISSIONS TRUE FOR MISCONDUCT TO PROVIDE OBJECTIONS OR RESPONSES RE: MOTION TO COMPEL AND SANCTIONS ON DEFENDANT." That document contains absolutely no information relating to the discovery requests and reads like an Answer. It is notable that Defendant had not filed an answer to the First Amended Complaint, so it is possible she got her captions confused. In any event, as of the date of this Tentative Ruling, the Court has received no opposition to the motion, let alone one that is timely.

Before the Court is unrefuted information the Plaintiff has propounded discovery and Defendant has entirely failed to respond.

It is unclear whether Plaintiff seeks monetary sanctions, as he has not articulated an amount sought. He does, however, clearly outline the other sanctions sought. He seeks an order prohibiting Defendant from:

1. Introducing and/or asserting any facts in support of Defendant's claims, defenses, and/or contentions, which are responsive to Plaintiff's discovery requests, at trial or in support/defense of any dispositive motions.
2. Producing, introducing, and/or identifying any witnesses, the identities of which are responsive to Plaintiff's discovery requests, in support of Defendant's claims, defenses, and/or contentions at trial or in support/defense of any dispositive motions.
3. Producing, introducing, and/or identifying any documents, which are responsive to Plaintiff's discovery requests, in support of her claims, defenses, and/or contentions at trial or in support/defense of any dispositive motions.
4. Introducing any facts or documentary evidence that are responsive to the Plaintiff's request for production at trial or in support/defense of any dispositive motions.

Given the uncontested information before the Court, these issue sanctions are **granted**.

17. 9:00 AM CASE NUMBER: N25-2180

CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: NEWREZ LLC